

SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY

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KRISTINA SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK AND POLICE OFFICER  
TYISHAH WILLIAMS,

Defendants.

**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Bronx  
County as the place of trial.

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**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
June 11, 2015

Yours, etc.

/s/ David M. Hazan  
JACOBS & HAZAN, LLP.  
STUART E. JACOBS, ESQ.  
Attorney for Plaintiff  
11 Park Place, 10<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007  
POLICE OFFICER TYISHAH WILLIAMS, 52<sup>nd</sup> Precinct

SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY

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KRISTINA SMITH,

Plaintiff,

-against-

THE CITY OF NEW YORK AND POLICE OFFICER  
TYISHAH WILLIAMS,

Defendants.

**INDEX NO.:**

**VERIFIED COMPLAINT**

**JURY TRIAL DEMANDED**

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Plaintiff KRISTINA SMITH, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 13, 2014, at approximately 7:40 a.m. at the southeast corner of Grand Concourse and Minerva Place, Bronx, New York plaintiff Kristina Smith was subjected to an unlawful seizure, false arrest, false imprisonment, assault, battery, and excessive force by defendant New York City police officer Tyishah Williams. Plaintiff was deprived of her constitutional and common law rights when defendant police officer Tyishah Williams unlawfully seized, falsely arrested, falsely imprisoned, assaulted, battered, and subjected plaintiff the use of excessive force in violation of the statutes and common law of the State of New York and the Fourth and Fourteenth Amendments to the United States Constitution.

**PARTIES**

2. Plaintiff KRISTINA SMITH is a resident of the State of New York.
3. POLICE OFFICER TYISHAH WILLIAMS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Upon information and belief, POLICE OFFICER TYISHA WILLIAMS is and was at all times relevant herein, assigned to the 52<sup>rd</sup> precinct.

5. POLICE OFFICER TYISHAH WILLIAMS is being sued in her individual and official capacities.

6. At all times relevant herein, defendant POLICE OFFICER TYISHAH WILLIAMS was acting under color of state law in the course and scope of her duties and functions as an agent, servant, employee and officer of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of her lawful functions in the course of her duties. She was acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in her as an officer, agent and employee of the New York City Police Department and incidental to the lawful pursuit of their duties as an officer, employee and agent of the New York City Police Department.

7. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

9. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

10. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

11. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with all requirements and pre-conditions to filing suit that are set forth in the Municipal Law Section 50.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

### **STATEMENT OF FACTS**

13. On March 13, 2014, at approximately 7:40 a.m. plaintiff was lawfully inside of her motor vehicle dropping her daughter off at school in the vicinity of Clinton High School located in the vicinity of 210<sup>th</sup> Street and Jerome Avenue when the driver of the vehicle directly behind her, defendant Police Officer Tyishah Williams, repeatedly honked her car horn.

14. Plaintiff's sixteen year old daughter exited their vehicle, and walked toward the entrance to her school, but before she reached the sidewalk, defendant Police Officer Tyisha Williams maliciously and intentionally stepped on the gas pedal of her car, as if she were about to drive into plaintiff's daughter and then quickly stepped on the brake as plaintiff's daughter was walking in front of defendant Williams' vehicle, causing plaintiff's daughter to scream and jump in fear.

15. Thereafter, plaintiff tried not to escalate the situation and lawfully began to drive away from the vicinity of her daughter's school after she confirmed that her daughter was safe and not injured.

16. As plaintiff drove she observed defendant Officer Williams following her.

17. Plaintiff was frightened by Officer Williams' aggressive behavior; therefore plaintiff lawfully used the speaker-phone in her vehicle to call 911 and report defendant Police Officer Williams' aggressive behavior.

18. Plaintiff followed the 911 operator's advice and pulled her vehicle to the side of the road in the vicinity of the southeast corner of Grand Concourse and Minerva Place, Bronx, New York.

19. Defendant Officer Williams pulled her vehicle to the side of the road immediately behind plaintiff's vehicle.

20. Thereafter, defendant Police Officer Tyishah Williams exited her vehicle and stated to plaintiff, in sum and substance : YEAH I'M GOING TO FUCK YOU UP.

21. Defendant Officer Williams further stated to plaintiff, in sum and substance: I'M GOING TO KICK YOU IN YOUR STOMACH YOU FAT BITCH.

22. Plaintiff informed defendant Officer Williams that she was pregnant, but defendant Officer Williams proceeded to strike plaintiff about the left side of her face and the crown of her head multiple times with a closed fist, without cause or legal justification.

23. Defendant Officer Williams then placed his hand around plaintiff's neck and applied pressure, causing plaintiff to experience difficulty breathing.

24. Plaintiff's seven year old son and four year old daughter were both present during the aforementioned incident.

25. As a result of defendant Officer Williams aforementioned conduct, plaintiff's children began calling for plaintiff and crying.

26. A New York City Police Department traffic officer witnessed the incident occurring and intervened to prevent defendant Officer Williams from continuing the unlawful

detention of plaintiff and the assault, battery, and use of excessive force against plaintiff by defendant Police Officer Williams.

27. Plaintiff was brought to a police precinct to be questioned about what occurred.

28. Thereafter, plaintiff was escorted by police officers to Montefiore Hospital to receive medical treatment for the physical injuries she received from defendant Officer Williams above-referenced behavior.

29. Plaintiff was interviewed by police officers assigned to the Internal Affairs Bureau of the New York City Police Department at Montefiore Hospital about the aforementioned events.

30. Plaintiff was not charged or prosecuted for committing any crime or violating any law.

31. Defendant Police Officer Tyishah Williams was placed under arrest and charged and prosecuted in Bronx County Criminal Court for (a) Assault in the Third Degree (P.L. 120.00(1)), (b) three counts of Endangering the Welfare of a Child (P.L. 260.10(1)), (c) Criminal Obstruction of Breathing or Blood Circulation (P.L. 121.11(a)), and (d) Menacing (P.L. 120.15), and (e) Harassment (P.L. 240.26(1)).

32. Upon information and belief, the criminal prosecution of defendant Police Officer Williams has concluded and did not terminate in her favor.

33. Defendant Police Officer Tyishah Williams' aforementioned conduct caused plaintiff to suffer a bleeding laceration, swelling, bruising and redness to the left portion of her face, a bump on the crown of her head, severe headaches, bruising and a bleeding laceration to her neck, and bleeding lacerations to her hands.

34. Defendant Officer Williams' aforementioned conduct also caused plaintiff to experience substantial pain, and to experience annoyance, alarm, and fear for her physical safety.

35. At no point during their encounter with plaintiff did the defendant police officer have probable cause or legal justification to seize, arrest and/or detain plaintiff.

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36. The false arrest, false imprisonment, unlawful seizure, assault and battery and use of excessive force against plaintiff by defendant police officers Tyishah Williams caused her to sustain severe physical, psychological and emotional trauma.

## **FIRST CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights**

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendant while acting within the scope of her authority, caused plaintiff to be unlawfully seized, falsely arrested, and imprisoned, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

## **THIRD CAUSE OF ACTION**

### **Negligent Hiring, Retention, Training and Supervision**

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

#### **FOURTH CAUSE OF ACTION**

##### **Negligence**

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. Defendant Officer Williams owed a duty of care to plaintiff.

47. To the extent defendant Officer Williams maintains that the physical contact her body made with plaintiff when she struck plaintiff and caused plaintiff to suffer severe physical injuries was unintentional body contact then defendant Police Officer Williams breached her duty of care by accidentally, negligently, or recklessly, struck, assaulted, battered, and used excessive force against plaintiff.

48. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

49. All of the foregoing occurred without any fault or provocation by plaintiff.

50. The City, as the employer of the officer defendant, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

#### **FIFTH CAUSE OF ACTION**

##### **Negligent Infliction of Emotional Distress**

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff Kristina Smith. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

53. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

## **SIXTH CAUSE OF ACTION**

### **Assault**

55. Plaintiff repeats and realleges paragraphs 1 through 54 as if fully set forth herein.

56. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

## **SEVENTH CAUSE OF ACTION**

### **Battery**

59. Plaintiff repeats and realleges paragraphs 1 through 58 as if fully set forth herein.

60. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

61. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for her conduct.

62. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of *respondeat superior*.



## **EIGHTH CAUSE OF ACTION**

### **Violation of Plaintiff's Fourth And Fourteenth Amendment**

#### **Rights**

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The use of excessive force used by defendant Police Officer Tyishah Williams as described herein was an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. The individually named police officer defendant was at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for her conduct.

#### **JURY DEMAND**

66. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

## **PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff Kristina Smith demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
June 11, 2015

By: /s/ David M. Hazan

DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
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New York, NY 10007  
(212) 577-2690

**ATTORNEY'S VERIFICATION**

**DAVID M. HAZAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
June 11, 2015

/S/ David M. Hazan

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DAVID M. HAZAN